

Court No. - 29

Case :- WRIT - C No. - 12209 of 2018

Petitioner :- Udayvir Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Uttar Kumar Goswami

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Govind Mathur,J.

Hon'ble Jayant Banerji,J.

Heard Sri Uttam Kumar Goswami, learned counsel for the petitioner, learned Standing Counsel for the State-respondents.

This petition for writ is preferred to question the correctness of the judgment dated 06.02.2018 passed by the District Consumer Forum Firozabad in Complaint Case No. 141 of 2015.

To challenge such an order, remedy of appeal is provided under the Consumer Protection Act, 1986 (hereinafter referred to as "Act of 1986") itself. As such the remedy available to the petitioner is under the Act of 1986 and not by way of filing the present petition for writ. Beside that, the Electricity Supply Code, 2005 under Para- 6.5 also prescribes the remedy where a consumer disputes the bills and the arrears determined. The petitioner has not availed the remedy aforesaid too.

In view of it, the writ petition is dismissed. The petitioner is at liberty to avail the remedy aforesaid.

Order Date :- 3.4.2018

Rameez

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(Jayant Banerji,J.) (Govind Mathur,J.)